

Legal Counsel Update: August 6, 2026

10:00 a.m. - Board of Commissioners Conference Room

Attending: Commissioners Ron Smith, Colene Martin and Gary Richardson; Wally Hicks, Legal Counsel; Nikole Guzman, Recorder

Legal Counsel Update

1. Declaration of Potential Conflicts of Interest

Commissioners Richardson, Martin, and Smith each declared no potential conflicts of interest.

2. Solid Waste Nuisance Abatement Litigation Authorization

Wally Hicks, Legal Counsel; Janet Fredrickson, Public Health; and Thomas Peterson, Solid Waste, presented a long-standing solid waste nuisance involving an absentee property owner. Staff reported that the property had been monitored since 2019 and that repeated efforts to obtain voluntary compliance had not produced lasting corrections. Staff stated that the number of occupants and vehicles had increased substantially. The narrow roadway was frequently obstructed, neighboring properties had experienced theft and continuous traffic, and approximately a dozen individuals appeared to be occupying the property. Staff also documented damage to the creek and surrounding riparian area, including the use of household cleaners and detergents, removal of water for bathing, and discharge of heated wastewater into low-flow salmon habitat. Legal Counsel explained that the County could initiate an enforcement action seeking a court order appointing the County as receiver of the property. A receivership would authorize the County to remove the occupants, secure and clean the property, and bill the property owner for the abatement costs. Staff advised that the owner had repeatedly failed to secure the property or resolve the violations. The Board approved proceeding with the solid waste nuisance abatement litigation without objection. Staff will initiate the enforcement process, keep the Board and affected neighbors informed, and provide public information concerning the abatement effort as appropriate.

3. Dissolution of the Road District

Wally Hicks, Legal Counsel, explained that the Road District had been created after the Oregon Legislature authorized counties to establish separate road districts in an effort to qualify for additional Secure Rural Schools funding. The federal Department of the Interior subsequently declined to recognize the district as a separate recipient and did not increase the County's payment. Because the Road District was not producing the intended financial benefit and continued to create administrative obligations, Legal Counsel recommended initiating the formal dissolution process. The Board approved proceeding with dissolution without objection. The formal dissolution documents will return to the Board for consideration.

4. Opportunity to Intervene - Jewell School District v. Oregon Department of Forestry et al.; Clatsop County Case No. 24CV13514

Wally Hicks, Legal Counsel, reviewed the history of county trust lands managed by the State of Oregon. He explained that counties had transferred tax-foreclosed forestlands to the State with the expectation that the lands would be managed and harvested for the benefit of the counties and their local taxing districts. A prior trust-lands lawsuit resulted in a substantial verdict that was later overturned on appeal. Counsel reported that attorney John DiLorenzo was representing the Jewell School District in new litigation and had invited affected counties to participate in confidential discussions regarding the case and possible intervention or support. Josephine County has a comparatively small interest in the trust lands, but local school districts and other taxing districts could receive some benefit from a successful claim. The Board directed Legal Counsel to participate in the upcoming informational discussions, evaluate the potential benefits and obligations of involvement, and report back to the Board before any commitment was made.

5. Adult Jail and Juvenile Detention Five-Year Local Option Tax

Wally Hicks, Legal Counsel; Matt Eide, Finance Director; Scott Hyde, Community Justice Director; and Sheriff Dave Daniel discussed proposed ballot language for the local option tax supporting the adult jail and juvenile detention. Legal Counsel noted that the final measure documents were due to the County Clerk the following week and reviewed language used in the 2017 and 2021 measures. The Board initially considered retaining the existing rate of up to \$0.93 per \$1,000 of assessed value while removing fixed percentage allocations between the adult jail and juvenile detention. Commissioners emphasized that the public had expressed support for maintaining the current rate rather than increasing taxes and that the County needed flexibility to respond to changing revenues and public-safety needs. Finance reported that levy receipts had been sufficient to support the affected programs without general-fund support during the current levy period. Recent expenditures had remained below collections, in part because of unfilled positions, but inflation, wage growth, and successful recruitment could reduce that cushion during the later years of a new levy. Mr. Hyde explained that Juvenile Justice requires approximately \$2.9 million annually and has limited ability to reduce costs because state law requires minimum staffing ratios regardless of the number of youth housed. He described the seriousness of the offenses associated with youth currently in custody and stated that other counties had very limited detention capacity available for contract use. The Board affirmed the importance of juvenile detention and rehabilitation to the County's overall public-safety system. The Board discussed whether a combined \$0.93 measure could accurately promise continued operation of both the adult jail and juvenile detention at existing service levels for the full five-year term. Participants expressed concern that allocating only a small portion of the levy to Juvenile Justice while promising both programs could create an obligation the County might not be able to sustain from the General Fund. After extensive discussion, the Board directed Legal Counsel to prepare a stand-alone adult jail measure at approximately \$0.89 per \$1,000 of assessed value. The proposed measure would replace the adult-jail portion of the existing levy and support capacity for up to 185 inmates and the intake of persons arrested in Josephine County. Juvenile Justice would be addressed through existing funds in the near term while the County develops a separate, longer-term funding strategy and public-information effort. Legal Counsel will return with revised language. The Board also requested a separate General Discussion meeting and public input at the upcoming evening Weekly Business Session before making a final decision.

6. Personnel Policy Revision: Article 8, Section 1 - Travel

Wally Hicks and Leah Harper, Legal Counsel, presented options for revising the County travel policy. The existing language required Finance approval for department-head travel, including routine in-state business, and had created unnecessary administrative delays. The Board discussed distinguishing routine same-day travel from overnight travel and allowing recurring professional-association meetings to receive advance authorization. Scott Hyde described regularly scheduled meetings of the Oregon Association of Community Corrections Directors and requested a process allowing the Board to approve recurring overnight meetings in advance. The Board directed Legal Counsel to revise Option 2 by adding an overnight-travel requirement. Department heads will retain authority to approve travel for employees within their departments. Department heads will obtain Finance approval for overnight travel unless the Board has provided advance authorization for recurring meetings. Legal Counsel will prepare the revision for adoption by Board Order.

7. Personnel Policy Revision: Article 4, Section 1 - Hiring

Wally Hicks, Legal Counsel, and Natalie Eckhardt-Doupe, Interim Human Resources Director, presented the proposed revision for Board review. No formal action was taken.

8. Personnel Policy Revision: Article 4, Section 2 - At-Will Employment

Wally Hicks, Legal Counsel, and Natalie Eckhardt-Doupe, Interim Human Resources Director, presented the proposed revision for Board review. No formal action was taken.

9. HB 4084

Wally Hicks, Legal Counsel, provided an update regarding HB 4084. No formal action was taken.

Chair Ron Smith called for Executive Session at 12:36 p.m. pursuant to ORS 192.660(2)(h), to consult with counsel concerning the legal rights and duties of the County regarding current litigation or litigation likely to be filed. Accredited news-media representatives were directed not to report or disclose the deliberations or statements made during Executive Session. Chair Smith stated that no final decision would be made in Executive Session and that the Board would return to Open Session before taking action.

Additional Attendees: Wally Hicks, Legal Counsel; Stephanie Watson, Paralegal; Dave Daniel, Sheriff; and Crissy Ewald, Daily Courier.

10. Executive Session

- a. Don Hukel v. RVS&E, LLC dba Corvette Bar and Grill, Josephine County, et al.; Josephine County Case No. 25CV45537 - ORS 192.660(2)(h)**
- b. Stephen Eric Fitch v. Josephine County, et al.; District Court Case No. 1:26-cv-01406 - ORS 192.660(2)(h)**

Executive Session adjourned at 12:47 p.m.

Legal Counsel Update Continued

11. Don Hukel v. RVS&E, LLC dba Corvette Bar and Grill, Josephine County, et al.; Josephine County Case No. 25CV45537

The Board reconvened in Open Session at 12:47 p.m. Chair Smith stated that the Board had received an update in Executive Session and directed Legal Counsel and staff to proceed with the defense.

12. Stephen Eric Fitch v. Josephine County, et al.; District Court Case No. 1:26-cv-01406

Chair Smith stated that the Board had received an update and discussed the matter in Executive Session. Legal Counsel and staff were directed to proceed through CIS.

13. Additional Subjects/Matters from Commissioners - ORS 192.640(1)

Commissioners reported no additional matters.

There being no further business, the Legal Counsel Update adjourned at 12:48 p.m.